

FOR NEW LICENSES AND TRANSFER
LICENSE AND/OR PERMIT APPLICATION
 FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY

To be completed by the City, Town or County Clerk:

Date Filed: 3/6/14 MR 075071

	Annual Fee	Prorated Fee
Basic Fee:	\$ _____	\$ _____
Add'l Dispensing Room Fee:	\$ _____	\$ _____
Transfer Fee:	\$ <u>100.00</u>	\$ _____
Total License Fee Collected	\$ <u>100.00</u>	\$ _____
Publishing Fee Collect:	\$ <u>100.00</u>	\$ _____

Required Attachments Received: Yes ☒

Advertising Dates(4): March 11, 18, 25, April 1, 2014

Hearing Date: April 1, 2014

Local Licensing Number: 2

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

A copy must be immediately forwarded to:
 State of Wyoming Liquor Division
 1520 E 5th Street
 Cheyenne WY 82002-0110

Formerly Held by: _____

Applicant: Freedom's Edge Brewing Co LLC

Trade Name (dba): Freedom's Edge Brewing Co.

Premise: 1509 Pioneer Ave
Number & Street

Cheyenne WY 82001 Laramie
City State Zip County

Mailing Address: 1509 Pioneer Ave
Number & Street or P.O. Box

Cheyenne WY 82001
City State Zip

Business Telephone Number: (307) 635-9245

Fax Number: ()

E-Mail Address: Tim@Freedom'sedgebrewing.com

For the license term: upon issuance
Month Day Year

Through: March 31 2015
Month Day Year

FILING FOR ☐ NEW ☒ TRANSFER LOCATION ☐ TRANSFER OWNERSHIP FILING IN (CHOOSE ONLY ONE) ☒ CITY OF <u>Cheyenne</u> ☐ COUNTY OF _____ FILING AS (CHOOSE ONLY ONE) ☐ INDIVIDUAL ☒ PARTNERSHIP ☐ CORPORATION ☐ LTD PARTNERSHIP ☐ ASSOCIATION ☐ ORGANIZATION ☒ LLC ☐ LLP	TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE) ☐ RETAIL LIQUOR LICENSE ☐ on-premise only ☐ off-premise only ☐ combination on/off premise ☐ RESTAURANT LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE ☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ GOLF CLUB ☐ SOCIAL CLUB ☒ MICROBREWERY ☐ WINERY ☐ BAR AND GRILL ☐ LOCATED WITHIN 5 MILES OF CITY (County License only)	To Assist the Liquor Division with scheduling inspections: DO YOU OPERATE? ☒ FULL TIME (e.g. Jan through Dec) ☐ SEASONAL/PART-TIME (specify months of operation) from <u>Jan</u> to <u>Dec</u> DAYS OF WEEK (e.g. Mon through Sat) <u>Mon through Sat</u> HOURS OF OPERATION (e.g. 10a - 2a) <u>Mon - Thurs 3pm - 9pm</u> <u>Fri & Sat 1pm - 11pm</u>
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1. Location of License:

(a) Give a description of the dispensing room and state where it is located in the building (e.g. 10x12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: If **Winery or Microbrewery**, also list manufacturing facility. W.S. 12-4-102(a)(i):

10x20 dispensing room in front, 40'x20' manufacturing in rear

(b) Do you have an additional dispensing room? ☐ YES ☒ NO If yes, provide description and location:

(c) Provide the legal description and the zoning of the site where the applicant will conduct business:

N 44' of lots 12-15, Block 46 (Zone: CBD)

2. Do you W.S. 12-4-103 (a) (iii):

(1) **OWN** the building in which sales room is located?

☐ YES (own)

(2) **LEASE** the building in which sales room is located?

☒ YES (lease)

(A) DATE lease expires 11/30/2017 located on page 13 paragraph 48 of lease document.

(B) Provision for **SALE** of alcoholic or malt beverages located on page 6 paragraph 19 of lease document.

NOTE: Attach a true copy of the lease to application. Lease **MUST** contain provision for **SALE OF ALCOHOLIC or MALT BEVERAGES** and be valid **THROUGH** the **TERM OF THE LICENSE** W.S. 12-4-103(a)(iii).

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business? ☐ YES ☒ NO

4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith:

5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO
- If "YES", explain: _____

6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO

7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b):

8. (a) Have you submitted a valid food service permit upon application? W.S. 12-4-407(a) W.S. 12-4-413(a) ☐ YES ☐ NO
- (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☐ NO ☐ N/A

RESORT LICENSE: Complete questions 9(a) through 9(c):

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11:

9. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license? W.S. 12-4-412(b)(iii) ☒ YES ☐ NO

If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail ☒ Restaurant ☐ Resort ☐ Bar and Grill:

11. (a) Do you self distribute your products? ☒ YES ☐ NO
- (b) Do you distribute your products through an existing malt beverage wholesaler? ☐ YES ☒ NO

ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable:

12. FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) The name and address of the grand lodge or national organization is: _____
- (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☐ NO
- (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

13. VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) The name and address of the National Veterans organization is: _____
- (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☐ NO
- (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

14. SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License (THE PETITION MUST BE ATTACHED TO APPLICATION) ? ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

15. GOLF CLUBS W.S. 12-1-101(a)(iii)(D):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

- 16. (a) If applicant is an Individual or Partnership:** State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership. **If the application is for a Club:** State the name, date of birth and residence of each officer.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	No. of Years in Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
						YES ☐ NO ☐	YES ☐ NO ☐
Timothy Moore	11/28/66	805 S. Glendo Glendo WY 82215	219- 545-2501	3	35	YES ☐ NO ☒	YES ☐ NO ☒
Dawn Moore	10/24/67	805 S. Glendo Hwy Glendo WY 82215	219- 775-3030	3	35	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

OATH OR VERIFICATION

(Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING)

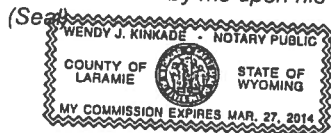
COUNTY OF Laramie SS.

Before Me, Wendy J. Kinkade, (specify)
(Printed name of Notary or other officer authorized to administer oaths)

a Notary Public, Officer authorized to administer oaths in and for
Laramie County, State of Wyoming, personally appeared

Timothy Moore name he/she being first duly sworn
(Insert Names)

by me upon his oath, says that the facts alleged in the foregoing instrument are true.



1. [Signature]
2. _____
3. _____
4. _____

My Commission expires: 3/27/2014

Witness my hand and official seal:

Wendy J. Kinkade
(Notary Public or other officer authorized to administer oaths)

Title Notary

Dated: 3/10/14

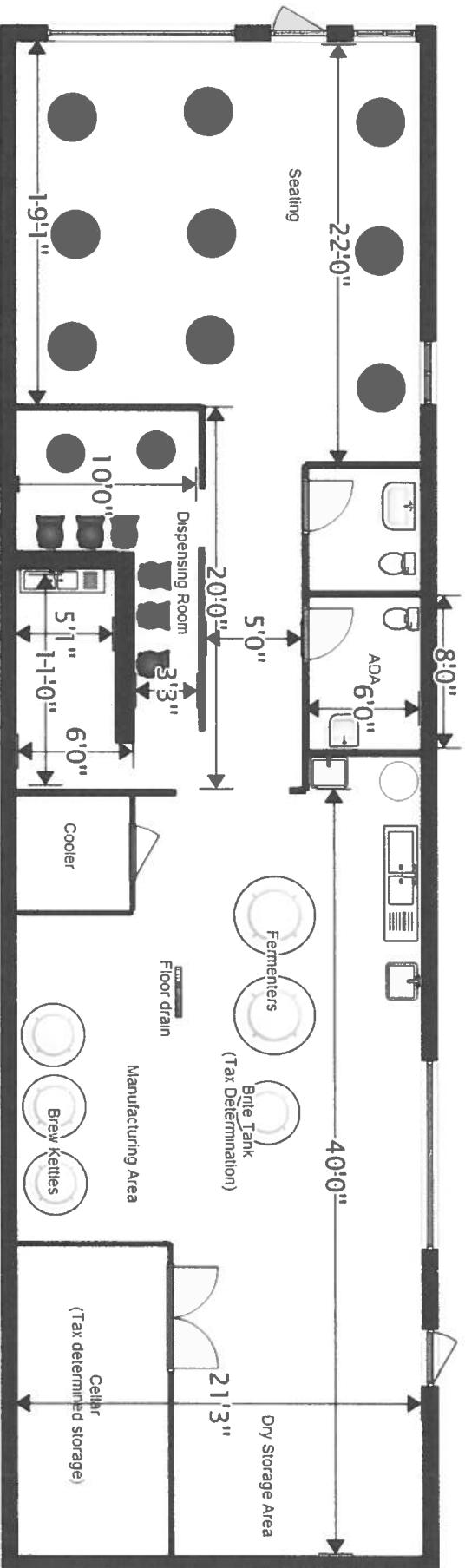
REQUIRED ATTACHMENTS:

- (a) Attach any lease agreements W.S. 12-4-103 (a) (iii).
- (b) If the building is not in existence, an architect's drawing or suitable plans of the room and the premises to be licensed must be attached W.S. 12-4-102 (a) (i).
- (c) A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102 (a) (v).
- (d) Restaurant or Bar & Grill Liquor License applicants must include a copy of the CURRENT food service permit W.S. 12-4-407 (a) or 12-4-413 (a).
- (e) Include a drawing of the dispensing room W.S. 12-5-201 (a).
- (f) Check or bank draft as payment for the application and publishing the notice of application (Direct billing is permissible for publication fees) W.S. 12-4-101-4 (a).
- (g) If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601 (b).

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for four (4) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Agent:		
Chief:		
Acct.:		



feet

24ft

48ft

Addendum to Lease

This addendum shall become part of the lease dated September 12th, 2011 between West Lincoln and Pioneer, LLC. And Freedom's Edge Brewing Co. LLC for the property located at 1509 Pioneer Ave. Cheyenne, WY 82001.

Freedom's Edge Brewing 2, LLC, a Wyoming Limited Liability Company, shall also be made part of this lease. Freedom's Edge Brewing 2, LLC. Will be bound by all terms and conditions in the lease.

Freedom's Edge Brewing 2, LLC. Will be permitted to manufacture and distribute malt liquor beverages as stated on page 6, paragraph 19 of the original lease.

All other provisions of the lease will remain unaffected by this addendum.

IN WITNESS WHEREOF, the parties have executed this addendum as of the date hereof.

LANDLORD:

West Lincoln and Pioneer LLC

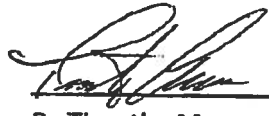

By Tricia Diehl Date
Managing Member

TENANT:

Freedom's Edge Brewing Co., LLC


By Timothy Moore Date
Managing Member
Freedom's Edge Brewing Co., LLC

Freedom's Edge Brewing 2, LLC


By Timothy Moore Date
Managing Member
Freedom's Edge Brewing 2, LLC

LEASE AGREEMENT

THIS LEASE AGREEMENT made and entered into this 12th day of September 2011, by and between West Lincoln and Pioneer LLC hereinafter referred to as "Landlord", and Freedoms Edge Brewing Co. LLC, a Wyoming limited liability corporation, doing business as Freedoms Edge Brewing Co., hereinafter referred to as "Tenant".

WITNESSETH:

In consideration of the covenants, terms, conditions, agreement and payments as hereinafter set forth, the parties hereto covenant and agree as follows:

1. **PROPERTY - LEASED PREMISES**

Landlord hereby leases unto Tenant the following described premises 1509 Pioneer Cheyenne, WY being approximately 2,160 square feet (See attached Exhibit A).

2. **TERM**

The term of this Lease shall be three (3) years, one (1) month and sixteen (16) days. The term shall commence at 12:01 a.m. on the 15th of September 2011 or upon completion of Landlord's share of Tenant improvements, and unless terminated as herein provided for, shall end at 12:00 midnight on the 30th day of November 2014.

3. **RENT**

Tenant shall pay to Landlord, at address as herein set forth, the following as rental for the leased premises:

A. **Base Rental**

The base rental for the full term hereof shall be

Said rental shall be payable in monthly installments (basic monthly rental) of

Dates	Monthly Rent	Rate Per SF	Annual Rent
09/15/2011 – 10/14/2011	-0-	-0-	-0-
10/15/2011 – 10/31/2011	\$		
11/01/2011 – 11/30/2012	\$		
11/01/2012 – 11/30/2013	\$1		
11/01/2013 – 11/30/2014	\$1		

and shall be due in advance on the 1st day of each month during the term hereof.

Landlord acknowledges receipt of the sum of _____ paid by Tenant upon execution hereof being _____
in payment of security deposit of _____ and prorated rent of _____ for first
partial month's rent.

B. Security Deposit

Tenant and Landlord further acknowledge the sum of One Thousand Thirty-Five and 00/100 Dollars (\$1,035.00) to be retained by Landlord as security for performance of all the terms and conditions of this Lease Agreement to be performed by Tenant, including payment of all rental due under the terms hereof. Deductions may be made by Landlord from the amount so retained for the reasonable cost of repairs to the demised premises (ordinary wear and tear excepted), for any rental delinquent under the terms hereof and/or any sum used in any manner to cure any default in the performance of Tenant under the terms of this Lease. Nothing herein contained shall limit the liability of Tenant as to any damage to the leased premises, and Tenant shall be responsible for the total amount of any damage and/or loss occasioned by actions of Tenant. Landlord may deliver the funds deposited hereunder by Tenant to any purchaser of Landlord's interest in the leased premises in the event such interest shall be sold, and thereupon Landlord shall be discharged from any further liability with respect to such deposit.

4. TAXES - REAL PROPERTY - ADJUSTMENT

A. Real Property Tax Paid by Tenant Applicable X Not Applicable

Tenant agrees to pay to Landlord, as additional rent, tenants proportionate share of the real estate any ad valorem taxes including any and all several or special assessments which may be levied or assessed by any lawful authority for each calendar year during the lease term, including those assessed against the land and/or building comprising the property as leased or a part thereof.

B. Real Property Tax Paid by Landlord X Applicable Not Applicable

Landlord shall be responsible for all real estate taxes due on the property and pay in a timely manner.

5. TAXES - PERSONAL PROPERTY - RESPONSIBILITY

Tenant shall be responsible and pay for any and all taxes and/or assessments levied and/or assessed against any furniture, fixtures, equipment and items of a similar nature installed and/or located in or about the leased premises by Tenant.

6. UTILITIES

Tenant shall be solely responsible for and promptly pay all charges for heat, water, gas, electric, sewer service and any other utility service used or consumed on the

leased premises. Should Landlord elect to supply all or any of the utility services to be used or consumed on the leased premises, Tenant shall, within ten days from the presentation of the statement for such utility service to the leased premises only or -0- percent. In no event shall Landlord be liable for any interruption or failure in the supply of any such utility to the leased premises. Said proration of utilities shall be reviewed by Landlord and Tenant at the end of the first year of occupancy, at which time Landlord shall determine if the present percentage of said total utilities is equitable in relation to the use of total services by all the Tenants and will be adjusted by Landlord if necessary.

7. HOLDING OVER

If after expiration of the term of the Lease, Tenant shall remain in possession of the leased premises and continue to pay rent without a written agreement as to such possession, then Tenant shall be deemed a month to month Tenant and the rental rate during such holdover tenancy shall be equivalent to the monthly rental paid for the last month of tenancy under this Lease. No holding over by Tenant shall operate to renew or extend this Lease without the written consent of Landlord to such renewal or extension having been first obtained.

8. MODIFICATION OR EXTENSIONS

No modification or extension of this Lease shall be binding unless in writing, signed by the parties hereto and endorsed hereon or attached hereto.

9. ALTERATION - CHANGES AND ADDITIONS - RESPONSIBILITY

Subject to Landlord's prior approval, which shall not be unreasonably withheld, Tenant may, during the term of this Lease, at Tenant's expense, erect inside partitions, add to the existing electric power service, add telephone outlets, add light fixtures, install additional heating and/or air conditioning or make such other changes or alterations as Tenant may desire. At the end of this Lease, all such fixtures, equipment, additions and/or alterations (except trade fixtures installed by Tenant) shall be and remain the property of Landlord; provided, however, Landlord shall have the option to require Tenant to remove any or all such fixtures, equipment, additions and/or alterations and restore the lease premises to the condition existing immediately prior to such change and/or installation, normal wear and tear excepted, all at Tenant's cost and expense. All such work shall be done in a good and workmanlike manner and shall consist of new materials unless agreed to otherwise by Landlord. Any and all repairs, changes and/or modifications thereto shall be the responsibility and at the cost of Tenant. Landlord may also require adequate security from Tenant assuring no mechanic's liens on account of work done on the premises by Tenant. Landlord may also require adequate security to assure Landlord that the premises will be restored to their original condition upon termination of the Lease.

10. **APPROVAL OF CHANGES - SIGN APPROVAL**

Landlord must approve in writing any sign to be placed in or on the leased premises, regardless of size or value and/or any addition, change or alteration to the exterior of the leased premises. Prior to the cutting of any holes in the roof or exterior of the building or prior to any work being performed and/or any equipment being installed on the roof or the exterior of the building, the prior written approval is to be obtained by Tenant. If Tenant fails to get such prior written approval, then any roof repairs shall be the responsibility of Tenant. Landlord must approve in writing any other improvements, alteration, additions and/or changes to the leased premises in excess of Two Thousand and No/100ths Dollars (\$2,000.00). As a condition to the granting of such approval, Landlord shall have the right to require the Tenant to furnish a bond or other security acceptable to Landlord sufficient to insure completion of and payment for any such work to be so performed.

11. **CARE OF LEASED PREMISES - RESPONSIBILITY OF TENANT**

During the term of this Lease, Tenant agrees to keep and maintain the interior of the leased premises, including the plumbing, heating, air conditioning, and electric systems, in good condition and repair at Tenant's cost and expense. Any replacement cost, not due to Tenant's negligence, shall be the responsibility of the Landlord, Tenant further agrees at the end of the term to return the leased premises to Landlord in substantially as good condition as when received, except for usual and ordinary wear and tear. Tenant further agrees to be responsible for any repairs and/or maintenance required for any part of the improvements of which the leased premises are a part where such repair and/or maintenance is necessitated by actions or inactions of Tenant and/or activities conducted by Tenant on the leased premises. Tenant shall be responsible for their own snow removal.

12. **MAINTENANCE RESPONSIBILITY OF LANDLORD**

Except as herein otherwise provided for, Landlord shall keep and maintain the roof and exterior of the building, in good repair and condition.

13. **COMMON AREA CHARGES** ___ Applicable X Not Applicable
Intentionally omitted.

14. **CONTROL OF COMMON AREAS**

All parking areas, driveways, entrances and exits, common areas and other facilities furnished by Landlord, in, on or near the improvements of which the leased premises are a portion, shall at all times be subject to the exclusive control and management of Landlord, notwithstanding that Tenant and/or Tenant's employees and/or customers, may have a non-exclusive right to the use thereof. Landlord shall have the right from time to time to establish, modify and enforce reasonable rules and regulations with respect to said facilities and areas. Restroom and shared with other main floor tenants and cleaning and purchasing of

supplies shall be worked out directly with Tenants. All tenants shall cooperate in use of common loading doors so that it is coordinated with other tenant's deliveries and use.

15. **USE OF PREMISES AND CARE OF GROUNDS - TENANT**

Tenant shall conform to all present and future laws and ordinances of any governmental authority having jurisdiction over the leased premises. Tenant shall not allow an accumulation of trash or debris on the leased premises or within any portion of the improvements of which the leased premises are a part. All receiving of goods and merchandise and all removal of garbage shall be made only by way of the rear and/or other service door provided therefore. In the event the leased premises shall have no such door, then these matters shall be handled in a manner satisfactory to Landlord. No storage of any material outside of the leased premises shall be allowed unless first approved by Landlord in writing, and then in only such areas as are designated by Landlord. Tenant shall not commit or suffer any waste on the leased premises nor shall Tenant permit any nuisance to be maintained on the leased premises or permit any disorderly conduct, common noise or other activity having a tendency to annoy or disturb any occupants of any part of the improvements of which the leased premises are a part and/or any adjoining property.

16. **LIABILITY FOR OVERLOAD - TENANT**

Tenant shall be liable for the cost of any damage to the leased premises, the improvements of which the leased premises are a part or the sidewalks and pavements adjoining the same which will result from movement of heavy articles. Tenant shall not unduly load or overload the floors or any part on any part of the leased premises.

17. **GLASS AND DOOR RESPONSIBILITY - TENANT**

All glass and doors on the leased premises shall be the responsibility of the Tenant. Any replacement or repair shall be promptly completed at the expense of the Tenant.

18. **RULES AND REGULATIONS**

Landlord reserves the right to adopt and promulgate rules and regulations applicable to the leased premises and the land and improvements of which the leased premises are a part and from time to time to amend or supplement said rules and regulations. Notice of such rules and regulations and amendments and supplements thereto shall be given to Tenant, and Tenant agrees to comply with and observe such rules and regulations and amendments and supplements thereto, provided, however the same apply uniformly to all tenants of the improvements of which the leased premises are a part.

19. **USE OF PREMISES**

Tenant shall use the leased premises for the manufacturing, production and distribution of malt liquor beverages, as a tasting room with retail sales, and for no other purpose whatsoever without the written consent of the Landlord. Tenant shall be responsible for operating in accordance with all city, county, state and federal laws and ordinances.

20. **PARKING**

Throughout the term of this Lease, Landlord shall provide two (2) spaces on the north side of the building for off-street parking. Tenant shall park all vehicles of whatever type used by Tenant and/or Tenant's employees only in those areas which are designated by Landlord for this purpose, and Tenant accepts the responsibility of seeing that Tenant's employees park only in such areas as are so designated.

21. **INSURANCE - RESPONSIBILITY OF TENANT**

Tenant shall procure, pay for and maintain comprehensive public liability insurance providing coverage from any loss or damage occasioned by an accident or casualty, about or adjacent to the leased premises, which policy shall be written on an "occurrence basis" with limits of not less than \$1,000,000.00 liability coverage and \$100,000.00 property damage coverage. In addition thereto, Tenant shall, at all times, procure, pay for and maintain fire legal liability insurance coverage on the leased premises. Certificates of such insurance shall be delivered to Landlord and shall provide that said coverage shall not be changed, modified, reduced or canceled without thirty (30) days prior written notice thereof being given to Landlord. If Tenant uses, in the leased premises, any kind of steam or other high pressure boiler or other apparatus which present any possibility of damage to the leased premises or the improvements of which the leased premises are a part or the life and limb of persons within such premises, Tenant agrees to carry appropriate boiler insurance in an amount satisfactory to Landlord to indemnify against any loss resulting from any explosion or other damage or liability.

22. **INSURANCE - RESPONSIBILITY OF LANDLORD**

The Landlord shall be responsible for and shall have in effect at all times fire, extended coverage, and vandalism and malicious mischief insurance in such amounts as shall be determined appropriate by Landlord. In the event of any increase in the premium therefore, regardless of the reason for such increase, over the premium paid for the coverage in effect as of the date hereof, Tenant shall pay, as additional rent due under the terms hereof, 100% of the amount of such increase. If necessary, the amount due hereunder shall be prorated on the basis of the remaining term of this Lease as to the remaining term of the policy for which said increase in premium has been charged.

23. **REGULATIONS ON USE**

It shall be Tenant's sole and exclusive responsibility to meet all requirements and laws of any governmental body having jurisdiction over the leased premises as such regulations affect tenant's operations, all at Tenant's sole cost and expense. Tenant further agrees not to install any electrical equipment that overloads any electrical paneling, circuitry or wiring and further agrees to comply with the requirements of the insurance underwriter or any governmental authorities having jurisdiction thereof.

24. **DAMAGE TO LEASED PREMISES**

In the event the leased premises and/or the improvements of which the leased premises are a part shall be totally destroyed by fire or other casualty or so badly damaged that, in the opinion of Landlord, it is not feasible to repair or rebuild same, Landlord shall have the right to terminate this Lease upon written notice to Tenant. If the leased premises shall be partially damaged by fire or other casualty, except if caused by Tenant's negligence, and said leased premises are not rendered untenable thereby, as determined by Landlord, an appropriate reduction of the rent shall be allowed for the unoccupied portion of the leased premises until repair thereof shall be substantially completed. If the leased premises are rendered untenable thereby, except if caused by Tenant's negligence, Tenant may, at its election, terminate this Lease as of the date of the damage. If Tenant elects not to terminate the Lease, the rent shall abate in proportion to the loss of use of the leased premises by Tenant during such untenability.

25. **INSPECTION OF AND RIGHT OF ENTRY TO LEASED PREMISES**

A. Tenant has inspected the leased premises and accepts the same in condition that exists as of the date hereof.

B. Landlord, and/or Landlord's agents and employees, shall have the right to enter the leased premises at all times during regular business hours, Landlord shall give Tenant three days notice or as agreed to by Landlord and Tenant, Landlord shall be sensitive to operation of Tenant's business and their clientele, and, at all times during emergencies, to examine the leased premises, to make such repairs, alterations, improvements or additions as Landlord may deem necessary or desirable, and Landlord shall be allowed to take all materials into and upon said premises that may be required therefore without the same constituting an eviction of Tenant in whole or in part, and the rent reserved shall in no way abate while such repairs, alterations, improvements or additions are being made, by reason of loss or interruption of business of Tenant or otherwise. During the six months prior to the expiration of the term of this Lease or any renewal thereof, Owner may exhibit the premises to prospective tenants and/or purchasers and may place upon the leased premises the usual notice indicating the leased premises are for lease and/or sale.

26. **DEFAULT - REMEDIES OF LANDLORD**

If Tenant shall default in the payment of rent or in the keeping of any of the terms, covenants or conditions of this Lease to be kept and/or performed by Tenant and if such default isn't cured within three (3) days after notice of default from Landlord, Landlord may immediately, or at any time thereafter, re-enter the leased premises, remove all persons and property therefrom, without being liable to indictment, prosecution for damage therefore, or for forcible entry and detainer and repossess and enjoy the leased premises, together with all additions thereto or alterations and improvements thereof. Landlord may, at its option, at any time and from time to time thereafter, relet the leased premises or any part thereof for the account of Tenant or otherwise, and receive and collect the rents therefore and apply the same first to the payment of such expenses as Landlord may have incurred in recovering possession and for putting the same in good order and condition for rental, and expense, commissions and charges paid by Landlord in reletting the leased premises. Any such reletting may be for the remainder of the term of this Lease or for a longer or shorter period. In lieu of reletting such leased premises, Landlord may occupy the same or cause the same to be occupied by others. Whether or not the leased premises or any part thereof be relet, Tenant shall pay the Landlord the rent, and all other charges required to be paid by Tenant up to the time of expiration of this Lease or such recovered possession, as the case may be, and thereafter, Tenant, if required by Landlord, shall pay to Landlord until the end of the term of this Lease, the equivalent of the amount of all rent reserved herein and all other charges required to be paid by Tenant, less the net amount received by Landlord for such reletting, if any. If the leased premises shall be reoccupied by Landlord, then, from and after the date of repossession, Tenant shall be discharged of any obligations to Landlord under the provisions hereof for the payment of rent. In the event of any default by Tenant, and regardless of whether the premises shall be relet or possessed by Landlord, fixtures, additions, furniture, and the like then on the premises may be retained by Landlord. In the event Tenant is in default under the terms hereof and, by the sole determination of Landlord, has abandoned the leased premises, Landlord shall have the right to remove all the Tenant's property from the leased premises and dispose of said property in such a manner as determined best by Landlord, all at the cost and expense of Tenant and without liability of Landlord for the actions so taken. In the event an assignment of Tenant's business or property shall be made for the benefit of creditors, or, if the Tenant's leasehold interest under the terms of this Agreement shall be levied upon by execution or seized by virtue of any writ of any court of law, or, if application be made for the appointment of a receiver for the business or property of Tenant, or, if a petition in bankruptcy shall be filed by or against Tenant, then and in any such case, at Landlord's option, with or without notice, landlord may terminate this Lease and immediately retake possession of the leased premises without the same working any forfeiture of the obligations of Tenant hereunder. In addition to remedy granted to Landlord by the terms hereof, Landlord shall have available any and all rights and remedies available under the

statutes of the State of Wyoming. No remedy herein or otherwise conferred upon or reserved to Landlord shall be considered exclusive of any other remedy but shall be cumulative and shall be in addition to every other remedy given hereunder or now or hereafter existing at law or in equity or by Statute. Further, all powers and remedies given by this Lease to Landlord shall be exercised, from time to time, and as often as occasion may arise or as may be deemed expedient. No delay or omission of Landlord to exercise any right or power arising from any default shall impair any such right or power or shall be considered to be a waiver of any such default or acquiescence thereof. The acceptance of rental by Landlord shall not be deemed to be a waiver of any breach of any covenants herein contained or of any of the rights of Landlord to any remedies herein given. Landlord's default remedies shall be limited to those allowed by Wyoming State Law.

27. **LEGAL PROCEEDINGS - RESPONSIBILITIES**

In the event of proceeding at law or in equity by either party hereto, and if the non-defaulting party shall pursue his rights through legal proceedings, then the defaulting party shall pay all costs and expenses, including all reasonable attorney's fees incurred by the non-defaulting party in pursuing such remedy in the event such non-defaulting party is awarded substantially the relief requested.

28. **HOLD HARMLESS**

Tenant will indemnify and hold Landlord harmless from and against any and all claims, losses, expenses, costs, judgments, and/or demands arising from the conduct of Tenant on the leased premises and/or on account of any operation or action by Tenant and/or from and against all claims arising from any breach or default on the part of Tenant or any act of negligence of Tenant, its agents, contractors, servants, employees, licensees, or invitees; or any accident, injury or death of any person or damage to any property in or about the leased premises.

29. **ASSIGNMENT OR SUBLETTING**

Tenant may not assign the Lease, or sublet the leased premises without the consent of Landlord; such consent shall not be unreasonably withheld, provided, however, no such assignment or subletting shall relieve Tenant of any of its obligations hereunder, and performance of the covenants herein by subtenants shall be considered as performance pro tanto by the Tenant.

30. **WARRANTY OF TITLE**

Landlord covenants it has good right to lease the leased premises in the manner described herein and that Tenant shall peaceably and quietly have, hold, occupy, and enjoy the premises during the term of the Lease.

31. **ACCESS**

Landlord shall provide Tenant non-exclusive access to the leased premises through and across land and/or other improvements owned by Landlord. Landlord shall have the right to designate, during the term of this Lease, all such non-exclusive access and other common facilities of the land and/or improvements of which the leased premises are a part.

32. **GOVERNMENTAL ACQUISITION OF PROPERTY**

The parties agree that Landlord shall have complete freedom of negotiation and settlement of all matters pertaining to the acquisition of the property by any governmental body, it being understood and agreed that any financial settlement respecting land to be taken whether resulting from negotiation and agreement or condemnation proceedings, shall be the exclusive property of Landlord, there being no sharing whatsoever between Landlord and Tenant of any sum received in settlement. In the event of any such governmental taking, Landlord shall have the right to terminate this lease on the date possession is delivered to the governmental body. Such taking of the property by a governmental body shall not be a breach of this Lease by Landlord nor give rise to any claims in Tenant for damages or compensation from Landlord.

33. **CHANGES AND ADDITIONS TO IMPROVEMENTS**

Landlord reserves the right at any time to make alterations or additions to the improvements of which the leased premises are a part and/or to build additions or other structures adjoining said improvements. Landlord also reserves the right to construct other buildings and/or improvements in the immediate area of the improvements in which the leased premises are located and to make alterations or additions thereto, all as Landlord shall determine. Easements for light and air are not included in the leasing of the leased premises to Tenant. Landlord further reserves the exclusive right to the roof of the improvements of which the leased premises are a part except as provided for in this Lease Agreement. Landlord also reserves the right at any time to relocate, vary and adjust the size of any of the improvements, parking areas or other common areas relating to the land and/or improvements of which the leased premises are a part, provided however, that all such changes shall be in compliance with the minimum requirements of governmental authorities having jurisdiction over the property.

34. **SUBORDINATION.**

The Tenant agrees that its Lease rights will be subordinate to any lending institutions making loans on the real property of which the leased premises are a part. The Tenant agrees to sign reasonable documents reflecting this subordination when, and if required by Landlord.

Landlord shall not be liable for any interruption in Tenant's phone service. Landlord makes no representations or warranty that the building's wiring is sufficient to meet the Tenant's particular telecommunications or computer requirements. Tenant agrees not to take any action that would damage the public phone network.

46. **MISCELLANEOUS.**

All marginal notations and paragraph headings are for purposes of references and shall not affect the true meaning and intent of the terms hereof. Throughout this Lease, wherever the words "Landlord" and "Tenant" are used, they shall include and imply to the singular, plural, persons both male and female, companies, partnerships and corporations, and in reading said Lease, the necessary grammatical changes required to make the provisions hereof mean and apply as aforesaid shall be made in the same manner as though originally included in said Lease.

48. **ADDITIONAL PROVISIONS**

A. Option to Renew – Providing Tenant is not in default under the current lease, Tenant shall have the right to renew this lease for a period of three (3) years under the same terms and conditions, except the monthly rents during the renewal terms shall be as follows:

<u>Dates</u>	<u>Monthly Rent</u>	<u>Rate Per SF</u>	<u>Annual Rent</u>
12/01/2014 – 11/30/2015			
12/01/2015 – 11/30/2016			
12/01/2016 – 11/30/2017			

Tenant shall give Landlord a minimum of ninety (90) days written notice of Tenant's desire to renew this lease.

IN WITNESS WHEREOF, the parties have executed this Lease as of the date hereof.

LANDLORD:

West Lincoln and Pioneer LLC

TENANT

Freedoms Edge Brewing Co. LLC
d/b/a Freedoms Edge Brewing Co.

By: Tricia Diehl

Managing Member

Date

By: Timothy Moore

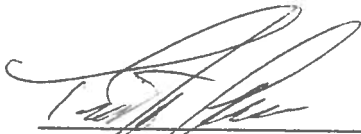
Managing Member

Date

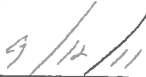
Guarantee

For value received and as an inducement to the Landlord to execute the within lease, the undersigned hereby unconditionally guarantee prompt payment in full of all indebtedness and obligation of the Tenant, now or hereafter owing and arising under the Lease as set forth therein, the performance of all of the Tenant's obligations under such Lease agreement, together with attorney's fees and expenses incurred in protecting or enforcing any obligation of the indebtedness owed to the Landlord by Tenant. The liability of the undersigned is primary and may be enforced before or after proceeding against the Tenant and, further, the Landlord may proceed directly against the Guarantors without proceeding against the Tenant. The Guarantors hereunder agree to be bound under the terms and conditions of the primary Lease as if they were signatories thereunder.

Guarantors:



Timothy Moore



Date

805 S. Glendo Highway

Glendo, WY 82213

(307) 735-4010 – Home Phone

(219) 545-2504 – Cell

tmoores@ibtvideosystems.com – Email